

Defendant is correct in that a self-represented litigant cannot recover attorney's fees as a discovery sanction. (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1017; see also *Aragman v. Ratan* (1999) 73 Cal.App.4th 1173.) Plaintiff has not shown that he incurred any attorney's fees in bringing this motion.

A second and independent reason for denying Plaintiff's motion for sanctions is that his motion to compel further responses is denied.

A third reason for denying the request for sanctions of any kind is that the Plaintiff has not shown that Defendant has participated in or promoted unusual or egregious discovery abuse. The actions Plaintiffs contend constitute a misuse of discovery: filing a motion to strike punitive damages, and asserting objections to interrogatories, do not constitute discovery abuse. Plaintiff has not made the requisite showing for issue sanctions.

7. 9:00 AM CASE NUMBER: C24-01886
CASE NAME: ALEXANDER REYNOLDS VS. HYUNDAI MOTOR AMERICA
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING

The unopposed motion of Christopher J.H. Im to be relieved as counsel for Plaintiff Alexander Reynolds, filed October 21, 2025, is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff's Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record.

The court will revise and sign the submitted order (Judicial Council Form MC-053) with the correction that the next hearing date is a Further Case Management Conference in Dept. 32 at the Wakefield Taylor Courthouse, 725 Court Street, Martinez, CA 94553 on June 9, 2026 at 8:30 am. The court will email the revised order to Counsel Im.

The withdrawal is effective upon Counsel Im's filing the proof of service of the signed order on the client and all parties.

8. 9:00 AM CASE NUMBER: C24-02719
CASE NAME: H. LAYTON VS. FARIDEH ERICKSON
***HEARING ON MOTION IN RE: TO SUBSTITUTE ATTORNEY**
FILED BY: LAYTON, H. F.
TENTATIVE RULING:

This unopposed motion will be dropped from calendar as moot because a substitution of attorney was filed January 6, 2026.

9. 9:00 AM CASE NUMBER: C25-00222
CASE NAME: JEANETTE JOHNSTON VS. RORE MANUFACTURING, INC., FKA RORE MANAGEMENT, INC.
HEARING ON DEMURRER TO: TO THE FIRST, SECOND, FOURTH, FIFTH, SIXTH, AND SEVENTH CAUSES OF ACTION OF PLAINTIFFS' FIRST AMENDED COMPLAINT
FILED BY: RORE MANUFACTURING, INC., FKA RORE MANAGEMENT, INC.
TENTATIVE RULING:

Vacated.

10. 9:00 AM CASE NUMBER: C25-00222
CASE NAME: JEANETTE JOHNSTON VS. RORE MANUFACTURING, INC., FKA RORE MANAGEMENT, INC.
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFFS' FIRST AMENDED COMPLAINT**
FILED BY: RORE MANUFACTURING, INC., FKA RORE MANAGEMENT, INC.
TENTATIVE RULING:

Vacated.

11. 9:00 AM CASE NUMBER: C25-01036
CASE NAME: DAN CARRILLO VS. CHRISTOPHER BEGG
***HEARING ON MOTION IN RE: CONTEST APPLICATION FOR GOOD FAITH SETTLEMENT FILED BY: BEGG, CHRISTOPHER**
FILED BY:
TENTATIVE RULING:

Before the Court is a motion by defendant and cross-complainant CBC General Contractors Inc. to contest an application for good faith settlement determination ("motion") and the application for good faith settlement determination ("Application") filed by plaintiffs Dan Carrillo and Emily Elliott, and cross-defendant Blaine Mervin Munsch dba Willow Creek Construction ("Applicants") for a good faith settlement determination. For the reasons set forth, the motion contesting the application for good faith settlement determination is denied in part, and the Application is **granted in part**. Pursuant to Code of Civil Procedure §§ 877 and 877.6, the Court finds the settlement between